

Amended Financial Statement

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 - RULE 6.06(5)

Please type or print clearly and mark [X] all boxes that apply. Attach extra pages if you need more space to answer any question/s.

Filed in:

- ☒ Federal Circuit and Family Court of Australia
- ☐ Family Court of Western Australia
- ☐ Other (specify)

Filed on behalf of:

Full name: Heather Anne Cooke

Client ID

File number NCC3896 of 2023

Filed at

Filed on 31 May 2024

Court location

Next Court date (if known)

This form is to be used by a party to a financial proceeding, such as property settlement, maintenance, child support or financial enforcement.

Part A About you

1. What is your family name as used now?	Given names?
Cooke	Heather Anne
c/- Delaney Roberts Family Lawyers, 274 Brunner Road,	
Adamstown	State NSW Postcode 2289

Please tick as applicable – only one box should be selected

AFFIDAVIT – for financial proceedings:

I swear* /affirm* that:

- (a) I have read Rule 6.06 and I am aware that by law I have an obligation to make a full and frank disclosure of my financial circumstances to the Court and each other party. In particular, I have disclosed in this document or in an affidavit filed by me or on my behalf under Rule 6.06(6), all matters I am required to disclose under Rule 6.06.
- (b) The information in the financial statement and any attachments to it which are within my personal knowledge are true. Where I have given an estimate in this financial statement, it is based on my knowledge and is given in good faith. All other information given in this financial statement and any attachments is true to the best of my knowledge, information and belief.
- (c) I have no income, property or financial resources other than as set out in this document or any affidavit filed by me under Rule 6.06(6).

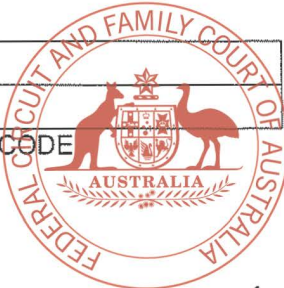
Your signature <i>Heather Anne Cooke</i>	Place Adamstown Date 31/05/2024
Before me (signature of witness) <i>[Signature]</i>	Full name of witness (please print) Tayleh Soames

- ☐ Justice of the Peace
- ☐ Notary public
- ☒ Lawyer
- ☐ Authorised Staff Member of the Court

* delete whichever is inapplicable

This financial statement was prepared by:
☐ the applicant ☐ the respondent ☒ lawyer

Tayleh Soames
ROB5334090
PRINT NAME AND LAWYER'S CODE



Part B Financial summary

IMPORTANT: As you complete the rest of this form you will be asked to transfer the totals for Items D, G, I-L to this summary.

2.	A	Your total average weekly income (THIS IS THE FIGURE AT ITEM 16)	\$	10,802
	B	Your total personal expenditure (THIS IS THE FIGURE AT ITEM 33)	\$	E 11,320
	C	Total value of property owned by you (THIS IS THE FIGURE AT ITEM 44)	\$	E 2,047,607
	D	Total gross value of your superannuation (THIS IS THE FIGURE AT ITEM 45)	\$	274,005
	E	Total of your liabilities (THIS IS THE FIGURE AT ITEM 55)	\$	E 779,476
	F	Total of your financial resources (THIS IS THE FIGURE AT ITEM 58)	\$	NIL

Part C Your employment details

3. What is your current occupation?

Cardiologist

4. Are you employed?

- ☐ No Go to Part D
☒ Yes Give details

- ☐ full time ☐ permanently ☐ on contract
☒ part time ☐ casually

5. What is the name of your employer?

Hunter New England Health (John Hunter Hospital)

6. What is the address of your employer?

John Hunter Hospital - Lookout Road, New Lambton Heights

STATE NSW

POSTCODE 2305

PHONE (02) 4921 3000

7. How long have you been employed at this place?

6 YEARS

8 MONTHS

DAYS

8. Are you self employed?

- ☐ No
☒ Yes STATE THE NAME OF THE BUSINESS / COMPANY / PARTNERSHIP / TRUST

I contract to Newcastle Heart, at 64 Denison Street Hamilton East NSW 2303, where I operate as a sole trader (cardiologist) on a part time basis.



Part D Your income

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'.
IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED.

		AVERAGE WEEKLY AMOUNT
9.	Total salary or wages before tax	\$ 10,800
10.	Investment income (before tax)	
	INCOME TYPE (eg. rent, interest, dividend) Dividend	\$ 2
	PAID BY (bank, mortgagor, company, tenant) Telstra Group Ltd	
	INCOME TYPE (eg. rent, interest, dividend) Rent (total amount attributed to paying property expenses)	\$ NIL
	PAID BY (bank, mortgagor, company, tenant) Tenants at 703/1 Como Crescent, Southport QLD 4215	
11.	Income from business/ partnership/ company/ trust	
	NAME OF BUSINESS / PARTNERSHIP / COMPANY / TRUST Heather Anne Cooke ABN 79687721943 (amount included at Item 9 above)	\$ Nominal
	TYPE OF BUSINESS Sole Trader	
	ADDRESS OF BUSINESS / PARTNERSHIP / COMPANY / TRUST 1/213 Morgan Street, Merewether	
	State NSW Postcode 2291	
12.	Government benefits	\$ NIL
13.	Maintenance / child support	
	PAID BY	
	FOR THE BENEFIT OF	
	\$ REQUIRED TO BE PAID	ACTUALLY RECEIVED
	\$	\$ NIL
14.	Benefits from employment/ business	\$ NIL
15.	Other income	\$ NIL
	PAID BY	
	TYPE OF BENEFIT	
16.	TOTAL AVERAGE WEEKLY INCOME WRITE THE ITEM 16 TOTAL AT ITEM 2A ON PAGE 2 OF THIS FORM	
		\$ 10,802



Part E

Other income earners in your household

17. Give the name, age and relationship to you and gross income of each other occupant of your household

	AGE	RELATIONSHIP TO YOU	AVERAGE WEEKLY AMOUNT
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NAME			\$ NIL
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Part F Expenses paid by others for your benefit

18.	PAID BY	TYPE OF EXPENSE	\$	NIL
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Part G Personal expenditure

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'.
IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED.

		AVERAGE WEEKLY AMOUNT
19. Total income tax		\$ 3,953
20. Superannuation	PLAN NAME QSuper voluntary superannuation contributions to Heather Anne Cooke	\$ 606
21. Mortgage payments/ rent	NAME OF LENDER/LANDLORD Rent paid to Christopher Weeks for Wife's current residence (address not to be disclosed)	\$ 800
22. Rates, strata unit levies, electricity, water and gas for 1/213 Morgan Street, Merewether NSW		\$ 239
23. Other mortgage payment	NAME OF LENDER Westpac home loan account #2919	\$ 471
	ADDRESS OF PROPERTY 703/1 Como Crescent, Southport QLD 4215	
	NAME OF LENDER Scheduled repayments - Westpac home loan account #7671 (\$1,217 per month), Westpac home loan account #7778 (\$1,633 per month) and Westpac home loan account #6802 (\$2,382 per month) secured over 1/213 Morgan Street, Merewether NSW 2291	\$ 1,207
	ADDRESS OF PROPERTY 1/213 Morgan Street, Merewether NSW	
24. Other rates, unit levies, electricity, water, gas for Wife's current residence		\$ 71
25. Life insurance premiums	TYPE OF POLICY	\$ NIL
	POLICY NO:	
	NAME OF INSURER	



PERSONAL EXPENDITURE – CONTINUED**AVERAGE WEEKLY AMOUNT**26. Other
insurance
premiums

TYPE OF POLICY Income Protection Insurance	\$ 324
POLICY NO: CL984287	
NAME OF INSURER BT	
TYPE OF POLICY Needlestick Benefit Insurance	\$ 3
POLICY NO: TN984288	
NAME OF INSURER BT	
TYPE OF POLICY Death Benefit Insurance	\$ 88
POLICY NO: YF984289	
NAME OF INSURER BT	
TYPE OF POLICY 2020 Audi Q3 NRMA CTP and Comprehensive insurance	\$ 30
POLICY NO:	
NAME OF INSURER NRMA	
TYPE OF POLICY 2015 Honda CRV CTP and Comprehensive insurance	\$ 33
POLICY NO:	
NAME OF INSURER GIO and Allianz	
TYPE OF POLICY BUPA Health Insurance (Heather, Christian and Joshua)	\$ 98
POLICY NO:	
NAME OF INSURER	
TYPE OF POLICY Allianz Home and Contents insurance - 1/213 Morgan Street, Merewether NSW	\$ 21
POLICY NO:	
NAME OF INSURER	

27. Motor vehicle
registration

REG. NO: EIN 83R	VEHICLE MAKE 202 Audi Q3	\$ 17
REG. NO: DAI 47C	VEHICLE MAKE Honda CRV	\$ 15



28. Hire purchase/ lease agreements	DESCRIBE THE PROPERTY	\$ NIL
	NAME OF COMPANY/ PERSON	
29. Loan repayments	NAME OF LENDER Westpac	\$ 200
	TYPE OF LOAN Personal Loan for 2020 Audi Account 012035 776300	
30. Credit card payments	CARD TYPE Mastercard Minimum Payment \$15	\$ 15
	NAME OF COMPANY Westpac #7204	
	CARD TYPE Mastercard Minimum Payment \$4	\$ 4
	NAME OF COMPANY Westpac #2809	
31. Maintenance payments/ child support	PAID FOR THE BENEFIT OF Stephen Christopher Cooke	\$ 1,200
	☐ assessment ☐ agreement ☒ order AMOUNT OF ASSESSMENT, AGREEMENT OR ORDER \$ 1,200	
32. Total of all other expenditure		\$ 1,925
33.	TOTAL PERSONAL EXPENDITURE WRITE THIS ITEM 33 TOTAL AT ITEM 2B ON PAGE 2 OF THIS FORM	\$ E 11,320



Part H Personal expenses you pay for the benefit of others

34. State which of the expenses in Part G are paid by you for other persons

NAME OF PERSON Stephen Cooke

\$ 749

GIVE DETAILS Motor vehicle registration and insurances, home loan repayments, building and contents insurance, rates, strata, electricity and internet

Part I Property owned by you

CURRENT VALUE OF YOUR SHARE

35. Home

FULL NAME OF THE REGISTERED OWNERS

Heather Anne Cooke and Stephen Cooke

\$ 1,000,000

PROPERTY ADDRESS 1/213 Morgan Street, Merewether NSW

YOUR % SHARE 50

36. Other real estate

PROPERTY ADDRESS 703/1 Como Crescent, Southport QLD

\$ 580,000

REGISTERED OWNERS

Heather Anne Cooke

YOUR % SHARE 100

37. Funds in banks, building societies credit unions or other financial institutions

NAME AND BRANCH BSB

Westpac 032-513

\$ 48,492

ACCOUNT HOLDER & NUMBER

Heather Anne Cooke 316 525

CURRENT BALANCE \$48492

NAME AND BRANCH BSB

Westpac - 032 513

\$ 204,346

ACCOUNT HOLDER & NUMBER

Heather Anne Cooke - 316 533

CURRENT BALANCE \$204346

NAME AND BRANCH BSB

Westpac 734-676

\$ 148,269

ACCOUNT HOLDER & NUMBER

Heather Anne Cooke 622-136

CURRENT BALANCE \$148269

NAME AND BRANCH BSB

Westpac 734-086

\$ NIL

ACCOUNT HOLDER & NUMBER

Heather Anne Cooke and Stephen Cooke 645 063

CURRENT BALANCE \$0

NAME AND BRANCH BSB

Westpac 732-501

\$ NIL

ACCOUNT HOLDER & NUMBER

Heather Anne Cooke and Stephen Cooke 612 594

CURRENT BALANCE \$0



38. Investments

NAME AND TYPE OF INVESTMENT		\$ NIL
FULL NAMES OF ALL OWNERS		
NUMBER OF SHARES HELD	YOUR % SHARE	

39. Life insurance policies

POLICY TYPE	POLICY NO.	\$ NIL
NAME OF INSURANCE COMPANY		
FULL NAMES OF ALL OWNERS	YOUR % SHARE	

40. Motor vehicle

YEAR	MAKE	\$ E 50,000
2020	Audi	
MODEL	REGISTRATION NO.	
Q3 Wagon	EIN 83R	
FULL NAMES OF REGISTERED OWNER/S	YOUR % SHARE	
Heather Anne Cooke	100	

YEAR	MAKE	\$ E 14,500
2015	Honda	
MODEL	REGISTRATION NO.	
CRV	DAI 47C	
FULL NAMES OF REGISTERED OWNER/S	YOUR % SHARE	
Heather Anne Cooke	100	

41. Interest in a business, including a business operated by you as a sole trader, in a partnership or through a proprietary company or a trust

NAME OF BUSINESS		\$ NIL
Heather Anne Cooke ABN 79 687 721 943		
ADDRESS OF BUSINESS		
	YOUR % SHARE	
	100	

Business type (Mark [X] which applies)

☐ Sole trader ☐ Partnership ☐ Proprietary company/trust

42. Household contents

\$ 2,000

43. Other personal property

SPECIFY	\$ NIL
YOUR % SHARE	

44.

TOTAL VALUE OF PROPERTY OWNED BY YOU
WRITE THE ITEM 44 TOTAL AT ITEM 2C ON PAGE 2 OF THIS FORM

\$ E 2,047,607



Part J **Superannuation**

You must attach a completed Superannuation Information Form for each superannuation interest if you are seeking an order for property settlement.

		GROSS VALUE
45. Interest in superannuation	NAME OF SUPERANNUATION FUND 1 Q Superannuation TYPE OF INTEREST ☒ Accumulation interest ☐ Retirement saving account ☐ Partially vested accumulation interest ☐ Small superannuation account ☐ Defined benefit interest ☐ Percentage only interest ☐ Self managed fund ☐ Approved deposit fund ☐ Eligible annuity	



Part K Your liabilities

		AMOUNT OF YOUR SHARE
46. Home mortgage/s	FULL NAMES OF ALL BORROWERS Heather Anne Cooke and Stephen Cooke - Westpac #7671 (\$188,098), #7778 (\$249,412), #6802 (\$609,053) secured over 1/213 Morgan Street, Merewether NSW YOUR % SHARE 50	\$ 523,281
47. Other mortgages	FULL NAMES OF ALL BORROWERS Heather Anne Cooke - Westpac home loan #2919 secured over 703/1 Como Crescent, Southport QLD YOUR % SHARE 100	\$ 222,479
48. Total income tax assessed and unpaid for the last financial year Date due:		\$ NIL
49. Total income tax assessed and unpaid in previous financial years		\$ NIL
50. Loans	NAME OF LENDER Westpac #6300 (purchase of Audi) TYPE OF LOAN ☐ overdraft ☐ other (specify) ☒ personal loan FULL NAMES OF ALL BORROWERS Heather Anne Cooke YOUR % SHARE 100	\$ 13,000
51. Credit/ charge cards	SPECIFY CARD PROVIDER AND TYPE Westpac Mastercard #2809 SPECIFY CARD PROVIDER AND TYPE Westpac Mastercard #7204	\$ 1,088 \$ 4,628
52. Hire purchase/ lease	NAME OF LENDER Date of final payment FULL NAMES OF ALL PERSONS NAMED IN AGREEMENT YOUR % SHARE	\$ NIL
53. Other personal liabilities	SPECIFY Repayment of overpayment of wages to NSW Health FULL NAME OF ANY OTHER LIABLE PERSON	AMOUNT OF YOUR SHARE \$ 15,000



YOUR % SHARE

54. Other personal business liabilities		AMOUNT OF YOUR SHARE
	SPECIFY	\$ NIL
	FULL NAME OF ANY OTHER LIABLE PERSON	
	YOUR % SHARE 100%	

55.	TOTAL LIABILITIES	\$ E779,476
WRITE THIS ITEM 55 TOTAL AT ITEM 2E ON PAGE 2 OF THIS FORM		

Part L

Financial resources

56. Interest in any trust or deceased estate	SPECIFY	\$
57. Other financial resources	SPECIFY	\$

58.	TOTAL FINANCIAL RESOURCES	\$
WRITE THIS ITEM 58 TOTAL AT ITEM 2F ON PAGE 2 OF THIS FORM		

Part M

About disposal of property

	Item	How disposed of	Value/amount received
59. Specify property falling within Rule 6.06(3)(g) disposed of by you or on your behalf in the 12 months before separation and since your separation			\$ NIL



Part N Orders for maintenance, child support, financial enforcement

Complete and attach this page only if the application is for orders for maintenance for yourself, the other party or your children or child support or financial enforcement.

60. Average weekly expenses

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED.

ITEM	TOTAL	FOR YOU	FOR CHILDREN (IF APPLICABLE)	OTHER ADULTS (IF APPLICABLE)
Food	\$ 300	\$ 200	\$ 100	\$ NIL
Household supplies	\$ 30	\$ 20	\$ 10	\$ NIL
House repairs	\$ 30	\$ 20	\$ 10	\$ NIL
Internet	\$ 21	\$ 11	\$ 10	\$ NIL
Telephone	\$ 13	\$ 10	\$ 3	\$ NIL
Motor vehicle				
petrol	\$ 45	\$ 45	\$ NIL	\$ NIL
maintenance	\$ 10	\$ 10	\$ NIL	\$ NIL
Fares / car parking	\$ 20	\$ 20	\$ NIL	\$ NIL
Clothing and shoes	\$ 90	\$ 40	\$ 50	\$ NIL
Children's activities	\$ 194	\$ NIL	\$ 194	\$ NIL
Child minding	\$ 142	\$ NIL	\$ 142	\$ NIL
Medical, dental and optical (not including health insurance premiums)	\$ 200	\$ 50	\$ 150	\$ NIL
Entertainment / hobbies	\$ 80	\$ 50	\$ 30	\$ NIL
Holidays	\$ 200	\$ 100	\$ 100	\$ NIL
Education expenses, including fees and levies	\$ 15	\$ NIL	\$ 15	\$ NIL
Chemist / pharmaceutical	\$ 52	\$ 20	\$ 32	\$ NIL
Gardening / lawnmowing	\$ NIL	\$ NIL	\$ NIL	\$ NIL
Cleaning (house / pool)	\$ 100	\$ 100	\$ NIL	\$ NIL
Repairs – furnishings and appliances	\$ 20	\$ 20	\$ NIL	\$ NIL
Dry cleaning	\$ 20	\$ 20	\$ NIL	\$ NIL
Books and magazines	\$ 5	\$ NIL	\$ 5	\$ NIL
Gifts	\$ 50	\$ 30	\$ 20	\$ NIL
Hairdressing, toiletries	\$ 20	\$ 10	\$ 10	\$ NIL
Other necessary commitments Extra curricular activities (swimming, tennis, music)	\$ 110	\$ NIL	\$ 110	\$ NIL
Lab Learning fees for Christian	\$ 158	\$ NIL	\$ 158	\$ NIL
Legal fees	\$ NIL	\$ NIL	\$ NIL	\$ NIL
TOTAL	\$ 1,925	\$ 776	\$ \$1,149	\$ 0



Part O Additional information

You should set out here or on an additional page any item that you may not be able to include in any section of the document. Please include the Part and paragraph number that it continues from.

This statement was prepared by ☐ applicant/s ☒ lawyer
☐ respondent/s

Tayleh Soames
2085334090

PRINT NAME AND LAWYER'S CODE

Approved by Chief Justice/Chief Judge pursuant to Rule 15.21

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